served upon adverse parties within the time required.

§ 221.99 *Basis of decisions; record.* (a) The record of a hearing shall consist of the transcript of testimony or summary of testimony and exhibits together with all papers and requests filed in the hearing.

(b) If a hearing has been held on an appeal pursuant to instructions of the Director, this record shall be the sole basis for decision insofar as the referred issues of fact are involved except to the extent that official notice may be taken of a fact as provided in § 221.100.

(c) Where a hearing has been held in a contest the record made shall be the sole basis for decision except to the extent that official notice may be taken of a fact as provided in § 221.100.

(d) In any case, no decision on appeal or in a contest shall be based upon any record, statement, file or similar document which is not open to inspection by the parties to the appeal or contest.

§ 221.100 *Official notice.* Official notice may be taken of the contents of the tract books, the serial registers, the approved plats of survey and other public records of the Department of the Interior and of any matter of which the courts may take judicial notice. Where a decision in a case in which a hearing has been held rests upon official notice of a material fact relating to an issue upon which the hearing was held, the decision will so state and will allow any party upon request to have an opportunity to show to the contrary. Such request must be filed and served within the time and in the manner prescribed in the decision. Where a decision or recommendation has rested upon such official notice and has afforded the parties an opportunity to show to the contrary, no further opportunity to show to the contrary will be allowed.

§ 221.101 *Effect of decision pending appeal.* Normally a decision will not be effective during the time in which a person adversely affected may file a notice of appeal, and the timely filing of a notice of appeal will suspend the effect of the decision appealed from pending the decision on appeal. However, when the public interest requires, the officer to whom an appeal may be or is taken may provide that a decision or any part of it shall be in full force and effect immediately.

§ 221.102 *Regulations governing practice before the Department.* Every individual who wishes to practice before the Department of the Interior, including the Bureau, must comply with the requirements of Part 1 of this title.

§ 221.103 *Inquiries.* No person other than officers or employees of the Department of the Interior shall direct any inquiry to any employee of the Bureau with respect to any matter pending before it other than to the head of the unit in which the matter is pending, to a superior officer, or to an employee of the unit authorized by the unit head to answer inquiries.

§ 221.104 *Compulsory attendance of witnesses.* The Field Commissioner is authorized to issue subpoenas directing the attendance of witnesses at hearings to be held before him or at the taking of depositions to be held before other officers. The issuance of subpoenas, service, attendance fees, and similar matters, shall be governed by the act of January 31, 1903 (43 U. S. C. 102–106) and 28 U. S. C. 1821. Subpoenas will be issued on Form No. 4–622.

§ 221.105 *Application for subpoena.* An application for a subpoena may be filed in the office of the Field Commissioner before whom the hearing is to be held, in the office of the officer who made the decision appealed from or in the office of the manager in which a complaint was filed, in which case the officer or manager will forward the application to the Field Commissioner.

§ 221.106 *Fees payable to witness who testifies on request without issuance of subpoena.* Any witness who attends any hearing or the taking of any deposition at the request of any party to the controversy without having been subpoenaed to do so shall be entitled to the same mileage and attendance fees to which he would have been entitled if he had been first duly subpoenaed as a witness on behalf of such party.

§ 221.107 *Power of Secretary.* Nothing in this part shall be construed to deprive the Secretary of any power conferred upon him by law.

The revision of Part 221 shall become effective as to all appeals taken from decisions by subordinate officers of the Bureau of Land Management or from decisions by the Director or his authorized representative which are dated on or after the first day of the second month commencing after the adoption of this revision of Part 221 and as to all private and Government contests and all protests initiated or filed on or after such effective date. Parts 220, 222, and 223 shall continue to govern proceedings until such time as the revised Part 221 becomes effective as to those proceedings.

CLARENCE A. DAVIS,
Acting Secretary of the Interior.

MARCH 20, 1956.

[F. R. Doc. 56–2286; Filed, Mar. 26, 1956; 8:49 a. m.]

Appendix—Public Land Orders

[Public Land Order 1276]

[Misc. 68986]

WASHINGTON

MODIFYING DEPARTMENTAL ORDER OF SEPTEMBER 3, 1909, AND EXECUTIVE ORDER OF JULY 2, 1910, CREATING POWER SITE RESERVE NO. 44 TO PERMIT GRANTING A RIGHT-OF-WAY

By virtue of the authority contained in section 1 of the act of June 25, 1910, c. 421 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The departmental order of September 3, 1909, creating Temporary Power Site Reserve No. 44, and the Executive order of July 2, 1910, confirming that order, are hereby modified to the extent necessary to permit the granting of a right-of-way, under Section 2477, U. S. Revised Statutes (43 U. S. C. 932), to the State of Washington, for widening existing State Highway No. 3 (U. S. 97), as shown on maps designated "State Road No. 3, Ellensburg to Yakima; Roza to Yakima (Sheet No. 18)", on file in the Bureau of Land Management (Misc. 68986), over and across the following-described land:

WILLAMETTE MERIDIAN

T. 15 N., R. 19 E.,
Sec. 28, SE¼SW¼.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

MARCH 20, 1956.

[F. R. Doc. 56–2267; Filed, Mar. 26, 1956; 8:46 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 965]

[Docket No. AO–166–A20]

MILK IN CINCINNATI, OHIO, MARKETING AREA

DECISION WITH RESPECT TO PROPOSED MARKETING AGREEMENT AND PROPOSED ORDER AMENDING ORDER, AS AMENDED

Correction

In F. R. Doc. 56–2261, appearing in the issue for Saturday, March 24, 1956, at page 1836, material included as part of the introduction was inadvertently omitted.

On page 1836, column 2, line 7, between the words "are" and "seasonal", insert the following material: "at variance with such proposed findings and conclusions, the request to make such findings and conclusions is hereby denied.

"*Findings and conclusions.* The following findings and conclusions on the issues decided herein are hereby made upon the basis of the record of the hearing:

"(1) The period of "pay-out" to producers under the seasonal production incentive plan should be modified.

"The present order provides that monies retained in the producer-settlement from payments for milk during April, May, June, and July in connection with the seasonal production incentive (Louisville) plan shall be distributed to producers by the market administrator during the months of August, September, October, and November immediately following. Producers proposed to modify

the pay-out period to the months of September, October, November, and December.

"In support of the proposal proponents introduced testimony to show that (1) August is frequently a month of relatively heavy production and no additional supplies are needed in such month, (2) most producers are in a position to store sufficient feed and roughage to provide the feeding requirements of their herds through the fall months, (3) supplemental dairy feeds are usually purchased in the winter months rather than in early fall, and (4) a somewhat wider seasonal variation in prices can be achieved by applying one-fourth of the accumulated fund to December milk when deliveries are less than in August.

"The purpose of the seasonal production incentive plan is to widen the seasonal variation in uniform prices to producers between the period of seasonally high production and the months of lowest".

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Food and Drug Administration

[21 CFR Part 165]

[Docket No. FDC 30 (a)]

CHEMICAL DERIVATIVES OF SUBSTANCES DESIGNATED AS HABIT FORMING

FINDINGS OF FACT AND CONCLUSIONS REACHED AFTER PUBLIC HEARING

In the matter of amending the regulations designating certain chemical derivatives of substances named in section 502 (d) of the Federal Food, Drug, and Cosmetic Act as habit forming by removing acetylcarbromal and bromural from the list of habit-forming chemical derivatives of carbromal:

It is proposed that, by virtue of the authority vested in the Secretary of Health, Education, and Welfare by the Federal Food, Drug, and Cosmetic Act (secs. 502 (d), 701, 52 Stat. 1050, 1055; 53 Stat. 854; 21 U. S. C. 352 (d), 371), delegated to the Commissioner of Food and Drugs by the Secretary (20 F. R. 1996), and upon the basis of substantial evidence received at the public hearing held pursuant to the notice published in the FEDERAL REGISTER on May 7, 1955 (20 F. R. 3113), the following order be made:

FINDINGS OF FACT[1]

1. Under section 502 (d) of the Federal Food, Drug, and Cosmetic Act, the Secretary of Health, Education, and Welfare may designate by regulations, after investigation, habit-forming chemical derivatives of a number of substances, including carbromal. Derivatives that have been so designated are required to bear the label statement "Warning—May be habit forming." In 1942, on the basis of evidence received at a public hearing, regulations were promulgated designating the drugs acetylcarbromal and bromural as habit-forming chemical derivatives of carbromal. A petition has now been filed to remove the drugs acetylcarbromal and bromural from the list of drugs designated as habit forming. If removed from the list, drugs containing acetylcarbromal or bromural will no longer be required to bear the legend "Warning—May be habit forming." (Ex. 1)

2. Evidence received at the hearing on the petition included a study of the medical literature relating to the drugs acetylcarbromal and bromural. In all but two of the sources referred to in the study, no mention is made of the tendencies of the drugs to cause addiction or habit formation. One reference stated that habituation to bromural may be induced under certain circumstances and one other reference stated that a compound containing carbromal (the parent substance of acetylcarbromal and bromural) and bromural was not habit forming. With these two exceptions, the information contained in this study was negative as to the habit-forming nature of the drugs acetylcarbromal and bromural. Such a study is only informative in evaluating the habit-forming tendency of a drug if substantiated by adequate clinical investigations. (R. 20–21, 147; Ex. 3)

3. Also included in the evidence was an affidavit of a medical practitioner describing the administration of a drug containing acetylcarbromal and bromural to 37 patients for varying periods of time, up to 22 weeks. The author of the affidavit concluded that the drug used was not habit forming and that its components, acetylcarbromal and bromural, would also not be habit forming. The affidavit does not, however, contain reference to the criteria applied by the author to determine the existence of habit-forming tendencies. In addition, it cannot be determined from the affidavit the nature of the observations from which it was concluded that the drugs were not habit-forming or the manner in which control was exerted over the subjects to insure that they took the drug as directed and that no other drugs having similar physiological effect were taken during the test period. Without knowledge of these facts, a study conducted for the purpose of determining the existence of habit-forming tendencies in a drug cannot be evaluated. (R. 155–156, 160, 164–167; Ex. 2)

4. Other evidence of record related to use of a drug containing a mixture of acetylcarbromal and bromural in a clinical study involving 40 subjects. It is impossible to determine the length of this study, since there is a discrepancy in the dates of the final interviews of some of the subjects as shown in Exhibit 4A and the date of the completion of the study as shown in Exhibit 4. As described in the evidence, this clinical study had certain defects. These include:

a. The criteria utilized for the determination of the existence of habit-forming tendencies were not appropriate for that purpose.

b. The study was conducted on ambulatory patients. The use of such patients is not satisfactory in a clinical study dealing with habit-forming tendencies of a drug, since control of the intake of the drug under study, as well as drugs having similar physiological effect, is almost impossible with ambulatory patients.

c. The study, as originally reported, made only ambiguous references to prior use of sedative drugs by the subjects, an important factor in determining the tendency of a drug to habit formation. Subsequently, Exihibit 4A was prepared and submitted in evidence. This additional exhibit does not contain information in sufficient detail to permit the evaluation of the habit-forming tendency of the drugs upon which the study was conducted.

d. Observations for withdrawal symptoms were not begun until 1 week after the termination of administration of the drug under study. It is possible that withdrawal symptoms might have begun and ended before the first observation, after termination of administration was made.

Because of the presence of these deficiencies in the study as reported, it does not determine whether or not acetylcarbromal and bromural have habit-forming tendencies. (R. Ex. 4, 4a, 120–126, 153–155, 164–167, 169–170)

5. The record included expert medical testimony that sedatives such as the drugs acetylcarbromal and bromural or a combination of them are or may be habit forming and that their label should bear a statement to that effect. (R. 69–71, 151)

CONCLUSION

It is concluded that the whole record does not warrant the removal of the drugs acetylcarbromal and bromural from the list of drugs that are required to bear the label statement "Warning—May be habit forming": *Therefore, it is ordered*, That Part 165—Certain Chemical Derivatives of Substances Named in Section 502 (d) of the Federal Food, Drug, and Cosmetic Act Designated as Habit Forming not be amended.

Any interested person whose appearance was filed at the hearing may, within 30 days from the date of the publication of this proposed order in the FEDERAL REGISTER, file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, Health, Education, and Welfare Building, 330 Independence Avenue SW., Washington, D. C., written exceptions thereto. Exceptions shall point out with particularity the alleged errors in this tentative order and shall contain specific references to the pages of the transcript of the testimony or to the exhibits on which such exceptions are based. Such exceptions may be accompanied by a memorandum or brief in support thereof. Exceptions and accompanying memoranda or briefs shall be submitted in quintuplicate.

Dated: March 21, 1956.

[SEAL] GEO P. LARRICK,
Commissioner of Food and Drugs.

[F. R. Doc. 56-2266; Filed, Mar. 26, 1956; 8:45 a. m.]

[1] The citations following each finding of fact refer to the pages of the transcript of the testimony and the exhibits received in evidence at the hearing.